

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

Tentative Ruling on Motion to Set Aside Default: Defendant Chase Ricks moves to set aside default judgment pursuant to CCP 473(b) on the grounds that the default taken against Ricks was the result of mistake, inadvertence, and/or excusable neglect. Plaintiff opposes the Motion.

Merits. CCP 473(b): “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ...”

The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, the Motion suffers from two substantial defects. First, no copy of the answer accompanied the motion as required. (Defendant did submit a proposed Answer along with the Reply, but the statute requires it to be filed with the application.) Second, the application was made on May 28, 2026. Default was entered November 18, 2025. The six-month deadline was therefore May 18, 2026. The request to set aside was not timely. The standard statutory relief for mistake, inadvertence, surprise, or excusable neglect under Code of Civil Procedure Section 473(b) – the only grounds for relief presented by Defendant – is no longer available, as it is subject to a strict six-month limitation period. Cal Code Civ Proc § 473. The Motion to Set Aside Default is **DENIED**. A proposed order has been lodged and will be modified.

GRINOLS VS. GENERAL MOTORS, LLC

CASE NUMBER: 25CV-0208540

Tentative Ruling on Order to Show Cause re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on May 19, 2026, to all parties and counsel for failure to file a Mandatory Settlement Conference Statement as required by Rule of Court 3.1380(c). No response to the OSC has been filed. Sanctions will be imposed on all parties and counsel in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms the July 28, 2026 trial date.